

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
ESMELKIN ROSARIO, KENNY PEREZ, and
CHRISTOPHER GONZALEZ,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
LUIS SOTOMAYOR, Shield No. 21209, NYPD POLICE
OFFICER CHRISTOPHER RICCIO, Shield No. 17103,
NYPD POLICE OFFICER DANIEL CASTRO, Shield No.
18241, and NYPD POLICE OFFICERS JOHN DOES
NUMBERS ONE THROUGH TEN,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Prosecution

Plaintiffs designate Bronx
County as the place of trial.

To the above-named defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
November 7, 2023

Yours, etc.



Omar Russo, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiffs
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, New York, New York 10007

NYPD POLICE OFFICER LUIS SOTOMAYOR, Shield No. 21209, NYPD 46th Precinct; 2120 Ryer Avenue, Bronx, New York 10457

NYPD POLICE OFFICER CHRISTOPHER RICCIO, Shield No. 17103, NYPD 46th Precinct; 2120 Ryer Avenue, Bronx, New York 10457

NYPD POLICE OFFICER DANIEL CASTRO, Shield No. 18241, NYPD 46th Precinct; 2120 Ryder Avenue, Bronx, New York 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
ESMELKIN ROSARIO, KENNY PEREZ, and
CHRISTOPHER GONZALEZ,

INDEX NO.:

Plaintiffs,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
LUIS SOTOMAYOR, Shield No. 21209, NYPD POLICE
OFFICER CHRISTOPHER RICCIO, Shield No. 17103,
NYPD POLICE OFFICER DANIEL CASTRO, Shield No.
18241, and NYPD POLICE OFFICERS JOHN DOES
NUMBERS ONE THROUGH TEN,

JURY TRIAL DEMANDED

Defendants.

----- X
Plaintiffs, ESMELKIN ROSARIO, KENNY PEREZ, and CHRISTOPHER GONZALEZ,
by their attorneys, Shulman-Hill, PLLC, as and for their Verified Complaint herein, allege upon
information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On December 6, 2022, at approximately 2:53 p.m., Plaintiffs Esmelkin Rosario, Kenny Perez, and Christopher Gonzalez, while lawfully at or around 210 Mount Hope Place, County of Bronx, New York, were subject to an unlawful arrest and detention by defendant Police Officers. Plaintiffs were thereafter arraigned in Bronx County Criminal Court and charged with crimes they did not commit. In addition, Plaintiffs were subjected to excessive force, as well as approximately eleven (11) hours of unlawful confinement at the NYPD 46th Precinct. All charges made against the plaintiffs were dismissed and sealed in their entirety on or around December 23, 2022. Plaintiffs were deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802 and their constitutional, common law, and statutory rights when the individual defendants unlawfully stopped, detained, passed along false accusations to prosecuting attorneys and engaged in the malicious prosecution of Plaintiffs, in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff, Esmelkin Rosario, is a resident of the state of New York.
3. Plaintiff, Kenny Perez, is a resident of the state of New York.
4. Plaintiff, Christopher Gonzalez. is a resident of the state of New York.
5. NYPD Police Officer Luis Sotomayor, Shield No. 21209, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
6. NYPD Police Officer Luis Sotomayor, Shield No. 21209, is being sued in his individual and official capacity.
7. Upon information and belief, NYPD Police Officer Luis Sotomayor, Shield No. 21209, was at all times relevant herein assigned to the NYPD 46th Precinct.
8. NYPD Police Officer Christopher Riccio, Shield No. 17103, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. NYPD Police Officer Christopher Riccio, Shield No. 17103, is being sued in his individual and official capacity.
10. Upon information and belief, NYPD Police Officer Christopher Riccio, Shield No. 17103, was at all times relevant herein assigned to the NYPD 46th Precinct.
11. NYPD Police Officer Daniel Castro, Shield No. 18241, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
12. NYPD Police Officer Daniel Castro, Shield No. 18241, is being sued in his individual and official capacities.
13. Upon information and belief, NYPD Police Officer Daniel Castro, Shield No. 18241, was at al times relevant herein assigned to the NYPD 46th Precinct.
14. New York City Police Officers John Does Numbers One Through Ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
15. Police Officers John Does Numbers One Through Ten are being sued in their individual and official capacities.
16. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times

relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

17. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

18. Plaintiffs in furtherance of their causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

19. In accordance with New York State law and General Municipal Law Section 50, Plaintiffs Rosario and Gonzalez testified at a hearing held pursuant to General Municipal Law Section 50-H on August 7, 2023.

20. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

21. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

22. Plaintiffs have sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

23. On December 6, 2022, at approximately 2:53 p.m., Plaintiffs were lawfully present in the vicinity of 210 Mount Hope Place, County of Bronx, New York, when the defendant officers unlawfully arrested Plaintiffs without probable cause or legal justification.

24. At the time of the incident, Plaintiff Gonzalez, who worked for Plaintiff Perez, was working at Plaintiff Perez's mobile convenience store.

25. At the time of the incident, Plaintiff Rosario, wife to Plaintiff Perez, was approximately 16 weeks pregnant.

26. At the referenced place and time, Plaintiff Perez was outside his home when he was approached by the defendant officers, who began to arrest him.

27. As the officers, without justification and despite his lack of resistance, pulled Plaintiff Perez to the ground, Plaintiff Rosario, having heard people screaming from the street below descended downstairs to the street.

28. Plaintiffs Rosario and Gonzalez attempted to inquire with the defendant officers why Plaintiff Perez was being arrested.

29. Plaintiff Rosario was then attacked, being grabbed, pushed, and pulled to the ground in a disorganized and reckless effort by the defendant officers.

30. Plaintiff Gonzalez repeatedly attempted to explain to the defendant officers that Plaintiff Rosario was pregnant, imploring them to be gentle with her.

31. At this point, Plaintiff Gonzalez was violently sent airborne, and thrown to the ground by one defendant officer.

32. Immediately thereafter, and still under the shock of his injuries from being physically thrown, he was then tased by the defendant officers.

33. Despite their knowledge, at this point, that Plaintiff Rosario was pregnant, the defendant officers continued their brutal attack, causing her pain and distress.

34. The defendant officers then arrested the plaintiffs, subjecting them to unlawful pat-down searches and tightly restraining them with metal handcuffs causing pain.

35. At no time relevant herein did Plaintiffs commit a crime or violate the law in any way, nor did the police officers have an objective basis to accuse Plaintiffs of committing a crime or violating the law in any way.

36. At no point did the defendant officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiffs or from a location that was in Plaintiffs' possession, custody, or control.

37. Plaintiffs did not resist arrest at any point.

38. Thereafter, Plaintiffs were placed in the back of an NYPD vehicle and transported to the 46th Precinct.

39. Plaintiffs Gonzalez and Rosario were later transported via ambulance to Bronx-Lebanon Hospital to be treated for their injuries.

40. Plaintiff Gonzalez still had the barbs from the taser stuck in his torso, which had to be surgically removed, leaving scars.

41. Plaintiff Rosario suffered contusions and abrasions on her knees, as well as lower back pains and other injuries that could have endangered her pregnancy.

42. After approximately two (2) hours at the hospital, Plaintiffs Gonzalez and Rosario were transported back to the 46th Precinct.

43. Upon their arrival at the 46th Precinct, Plaintiffs were unlawfully fingerprinted, photographed, and placed in holding cells.

44. While Plaintiffs were in custody, the defendant police officers provided the Bronx County District Attorney's Office with the false, misleading, and/or incomplete information that Plaintiffs had committed crimes.

45. Specifically, the defendant police officers falsely stated to the Bronx County District Attorney's Office that Plaintiffs Rosario and Gonzalez were engaged in Obstructing Governmental Administration, and that Plaintiff Perez was engaged in Resisting Arrest.

46. After approximately 11 hours in unlawful custody, all three Plaintiffs were released from the 46th Precinct with Desk Appearance Tickets.

47. On or around December 23, 2022, the plaintiffs appeared in Bronx County Criminal Court and all charges against them were dismissed and sealed in their entirety.

48. Some of the police officer defendants observed the violation of Plaintiffs' rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably arresting, confining, and using excessive force against Plaintiffs.

49. The unlawful arrest, confinement, and use of excessive force by the individually named defendants caused Plaintiffs to sustain mental and emotional trauma.

FIRST CAUSE OF ACTION

Negligence

50. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

51. Defendants owed a duty of care to Plaintiffs.

52. To the extent defendants claim that the injuries to Plaintiffs by the defendant police officers were unintentionally caused and that the force used by the defendants against them was unintentional, then the defendants breached that duty of care by, among other things, throwing, seizing, tasing, and tightly handcuffing them.

53. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

54. All of the foregoing occurred without any fault or provocation by Plaintiffs.

55. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

56. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

57. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

Unlawful Stop, Question, and Search

58. Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

59. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiffs' freedom of movement through means intentionally applied.

60. The conduct of defendants in approaching, stopping, and grabbing Plaintiffs was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

61. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

62. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

63. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights: Unlawful Seizure and Deprivation of Liberty

64. Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

65. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiffs to be seized, unlawfully searched,

falsely arrested, falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiffs' right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

66. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION

False Arrest/False Imprisonment

67. Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

68. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiffs and, in fact, confined Plaintiffs, and Plaintiffs were conscious of the confinement. In addition, Plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

69. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

70. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

71. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

72. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiffs' Fourth and Fourteenth Amendment Rights: Excessive Force

73. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

74. The use of excessive force by defendants by, amongst other things, tasing and throwing them to the ground causing physical injury, constituted objectively unreasonable physical seizures of Plaintiffs in violation of their rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

75. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION
Negligent Infliction of Emotional Distress

76. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

77. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiffs.

78. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated Plaintiffs' statutory and common law rights as guaranteed Plaintiffs by the laws and Constitution of the State of New York.

79. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

80. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

81. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

82. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION
Negligent Hiring, Retention, Training and Supervision

83. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

84. Upon information and belief, the individual NYPD officers have documents histories of misconduct.

85. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

86. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Failure to Intervene

87. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

88. The defendants that did not physically touch Plaintiffs, but were present when other officers violated Plaintiffs' Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

89. Defendants failed to intervene to prevent the unlawful conduct described herein.

90. As a result of the foregoing, Plaintiffs suffered permanent injury, their liberty was restricted for an extended period of time, they were put in fear for their safety, and they were humiliated and subject to other physical constraints.

91. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

92. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

93. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

94. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights:

Denial of Right to Fair Trial/Due Process

95. Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

96. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

97. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

98. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

99. In withholding/creating false evidence against Plaintiffs, and in providing/withholding information with respect thereto, defendants violated Plaintiffs' constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

100. As a result of the foregoing, Plaintiffs sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of their constitutional rights.

101. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

102. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

103. As a result of the aforementioned conduct of Defendants, Plaintiffs sustained injuries including, but not limited to: economic, emotional, and psychological injuries.

TENTH CAUSE OF ACTION

42 U.S.C. § 1983 and New York State Law Malicious Prosecution

104. Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

105. The acts and conduct of the defendants constitute malicious prosecution under the United States Constitution.

106. Defendants commenced and continued a criminal proceeding against Plaintiffs.

107. There was actual malice and a clear, known absence of probable cause for the criminal proceeding against Plaintiffs and for each of the charges for which they were prosecuted.

108. The prosecution and criminal proceedings terminated in Plaintiffs' favor on the aforementioned dates.

ELEVENTH CAUSE OF ACTION

Assault

109. Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

110. Defendants, their agents, servants, and employees, acting within the scope of their employment, intentionally, willfully, and maliciously assaulted Plaintiffs in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to Plaintiffs, that such acts caused apprehension of such contact in the plaintiffs.

111. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

112. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

113. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

114. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional, and psychological injuries.

TWELFTH CAUSE OF ACTION

Battery

115. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

116. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiffs, when they, in a hostile and/or offensive manner roughly threw, tased, grabbed, and brutally effected arrests of Plaintiffs without their consent and with the intention of causing harmful and/offensive bodily contact to Plaintiffs, and caused such batteries.

117. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

118. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

119. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

120. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional, and psychological injuries.

THIRTEENTH CAUSE OF ACTION

Individual Defendant Officer's Violation of Plaintiffs' AC 8-802 Rights

121. Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

122. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

123. The acts of the defendant officers caused Plaintiffs to be deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

124. The defendant officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiffs, before detaining plaintiffs and further causing their detention for approximately 11 hours in total.

125. By reason of the acts and omissions by defendants described above, Plaintiffs have endured mental and emotional injuries and were otherwise damaged and injured.

FOURTEENTH CAUSE OF ACTION

Individual Defendant Officer's Failure to Intervene in Violation of Plaintiffs' AC 8-802 Rights

126. Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

127. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

128. The defendant officers had a duty to protect Plaintiffs from violations of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures,

and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

129. The defendants that did not physically touch Plaintiffs, but were present when other officers violated Plaintiffs' AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

130. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiffs from violation of their rights.

131. By reason of the acts and omissions by the defendants described above, Plaintiffs have endured mental and emotional injuries and were otherwise damaged and injured.

FIFTEENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Violation of Plaintiffs' AC 8-802 Rights

126. Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

127. The defendant officers are "covered individuals," as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

128. The City of New York, as the employer of the covered individual defendant officers, is liable to the Plaintiffs for the wrongdoing of the covered individual defendant officers.

129. The acts of defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

130. The acts of the defendant officers caused Plaintiffs to be deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

131. The defendant officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiffs, before detaining plaintiffs and further causing their detention for approximately 11 hours in total.

132. By reason of the acts and omissions by Defendants described above, Plaintiffs have endured mental and emotional injuries and were otherwise damaged and injured.

SIXTEENTH CAUSE OF ACTION

**City-Employer's Liability for Defendant Officer's Failure to
Intervene in Violation of Plaintiffs' AC 8-802 Rights**

133. Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

134. The defendant officers are "covered individuals," as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

135. The City of New York, as the employer of the covered individual defendant officers, is liable to the Plaintiffs for the wrongdoing of the covered individual defendant officers.

136. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

137. The defendant officers had a duty to protect Plaintiffs from violations of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

138. The defendants that did not physically touch Plaintiffs but were present when other officers violated Plaintiffs' AC 8 – 802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

139. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiffs from violation of their rights.

140. By reason of the acts and omissions by the defendants described above, Plaintiffs have endured mental and emotional injuries and were otherwise damaged and injured.

SEVENTEENTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

132. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

133. Such conduct breached the protections guaranteed to plaintiffs by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of their person and property;
- ii. freedom from arrest without probable cause;

- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiffs were aware and did not consent;
- iv. freedom from the lodging of false charges against them by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

134. As a direct and proximate result of defendants' deprivations of Plaintiffs' rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiffs suffered mental, economic, and emotional injuries, as well as a deprivation of liberty.

135. As a result of the above tortious conduct, Plaintiffs were caused to suffer mental, economic, and emotional injuries, as well as a deprivation of liberty.

136. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

141. Plaintiffs hereby demand trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs, ESMELKIN ROSARIO, KENNY PEREZ, and CHRISTOPHER GONZALEZ, demand judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiffs recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 801 *et seq.*

Dated: New York, New York
November 7, 2023

By: 
Omar Russo, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiffs
1 State Street Plaza
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(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, New York, New York 10007

NYPD POLICE OFFICER LUIS SOTOMAYOR, Shield No. 21209, NYPD 46th Precinct; 2120 Ryer Avenue, Bronx, New York 10457

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ATTORNEY'S VERIFICATION

OMAR RUSSO, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an associate of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiffs is because Plaintiffs do not reside in the county wherein I maintain my office.

DATED: New York, New York
November 7, 2023



OMAR RUSSO, ESQ.